

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – Employment. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$4,660 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Form Interrogatories – Employment, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond’s lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond’s inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

6. 9:00 AM

CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS-GENERAL, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – General. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be

awarded in the amount of \$4,660 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Form Interrogatories – General, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond’s lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond’s inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

7. 9:00 AM CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Requests for Production of Documents. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$1,670 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not